

The request is procedurally and substantively deficient in a number of ways and cannot be granted. Preliminarily, when the clerk served the presiding judge notice, it served only the party who submitted the stipulation and proposed order—the plaintiff. There is no evidence defendant has been served notice of this hearing.

This request is not supported by a “declaration containing facts sufficient to justify the sealing” as required. (Cal. Rules of Court, rule 2.551(b)(1).) As the application is unsupported by any evidence, the court cannot make the requisite findings outlined in California Rules of Court, rule 2.550(d).

Even if the court could reach the merits, the court questions whether protecting plaintiff’s reputation as a businessperson is an “overriding interest that overcomes the right of public access to the record” as required by California Rules of Court, rule 2.550(d)(1).

Also, while the parties submitted the proposed redacted versions of the documents as an attachment to the stipulation and proposed order, and it appears they went to some lengths to specify what portions of the documents they are requesting to be sealed, the parties’ failure to lodge an unredacted version of the entirety of the 517 pages submitted with the stipulation pursuant to California Rules of Court, rule 2.551(b)(4) and the confusing descriptions of the locations of the documents (for example, “Exhibit 1 at Exhibit 5, at Attachment 1 at 7:18–19”) have made it overly cumbersome for the court to locate the proposed redacted portions of the documents and compare them with the unredacted documents already in the court file to determine if the proposed redactions are narrowly tailored.

Based on the foregoing, the request is denied without prejudice. Should the parties elect to renew the request, they shall do so by properly noticed motion in accordance with Rules 2.550 and 2.551 in the California Rules of Court.

9. S-CV-0049793 Ratzak, Jessica v. Thinkware Systems USA

Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties’ class action settlement. The motion is unopposed. The court previously raised three concerns and continued the hearing for plaintiff to address those concerns. On June 16, 2026, plaintiff filed a supplemental declaration of counsel Todd M. Friedman with a supplemental declaration of Brandon Schwartz attached as Exhibit 1 thereto. This supplemental filing sufficiently addresses the court’s second and third noted concerns.

As to the court’s first noted concern, however, plaintiff provides that counsel has already served subpoenas on known third-party retailers and negotiated the response or received subpoenaed information from several of those third-party retailers. Plaintiff has not heard back from AAMP, which comprises approximately 19.4% of the sales of class products. Plaintiff states it sent a second subpoena on June 16, 2026, but plaintiff nonetheless believes the proposed timeframe (which includes notice to the class within 20 days of

preliminary approval) is sufficient. Counsel goes on to say, “If there are any delays we will be sure to provide those class members who purchased from AMMP [*sic*] additional time to make a claim, opt out or object and we will advise the Court of these issues prior to final approval.” (Friedman Decl., ¶ 8.)

Rather than grant preliminary approval that could result in two different timelines depending on the timing of receipt of subpoenaed records, the court on its own motion continues the motion for preliminary hearing once more to be heard on **August 11, 2026 at 8:30 a.m. in Department 32**. Please note the new department. By July 28, 2026, plaintiff shall file and serve a notice of continued hearing and supplemental declaration(s) to update the court on whether the subpoenaed information has been received or negotiated.

10. S-CV-0050979 Pearson, James v. Kaiser Found. Hospitals

Defendants are advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Defendants Kaiser Foundation Hospitals and The Permanente Medical Group, Inc. (“Kaiser defendants”) move for summary judgment contending the undisputed facts show they did not violate the ADA, the California Unruh Act, or the California Disabled Persons Act. Plaintiff opposes the motion.

The motion is supported by insufficient notice. A motion for summary judgment “shall be served on all other parties to the action at least 81 days before the time appointed for hearing.” (Code Civ. Proc., § 437c, subd. (a)(2).) Notice is extended by two court days when, as here, service is by electronic means. (Code Civ. Proc., § 1010.6, subd. (a)(2)(B).) Here, the motion was served on the 81st day without accounting for the two additional court days’ notice for electronic service. The motion for summary judgment or adjudication is denied due to insufficient notice.

11. S-CV-0053141 Hostler, Grace v. Ternavsky, Alex

Counsel is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Be Relieved as Counsel

The motion to be relieved as counsel is denied without prejudice. Counsel declared they served the client by mail at the client’s last known address, and that they confirmed the address was current by correspondence, addressed to the client at her last known address, which had not been returned undeliverable. However, this act alone is insufficient to demonstrate the address is “current” pursuant to California Rule of Court 3.1362(d). (Cal. Rules of Court, rule 3.1362(d).)